**THE STATE**

**Versus**

**DOUBT DUBE**

HIGH COURT OF ZIMBABWE
MUTEVEDZI & CHIVAYO JJ
BULAWAYO, 10 March 2026

**Criminal review judgment**

**MUTEVEDZI J:** The recently implemented Presidential Clemency Order which resulted in the release of over four thousand inmates from prisons across the country must serve as a reminder to judicial officers that only those offenders that really deserve to go to prison ought to be jailed.[1] As will be demonstrated, the offender in this case hardly deserved imprisonment.

[1] Doubt Dube, appeared before the court of a provincial magistrate at Kezi on a charge of Assault as defined in section 89 of the Criminal Law (Codification and Reform) [*Chapter 9:23*] ["the CODE"]. The brief facts were that on 2 February 2026, the complainant, the offender and another male adult were travelling together using the complainant's scotch cart to run a funeral errand. A misunderstanding arose amongst the three resulting in the offender assaulting the complainant. He struck him with a stone once on the left leg and whipped him several times on the abdomen, hands, legs and head using the whip with which he was driving the oxen pulling the cart. He was later arrested.

[2] At his trial, the offender was convicted on his own plea of guilty. In mitigation, he begged the trial court to sentence him to a non-custodial punishment. He indicated that the transgression was his first brush with the law; that he was 42 years old, married with five children. He further said he was employed earning R3000 a month. He profusely apologized for his conduct and informed the court that he had paid R1000 towards the complainant's medical expenses.

[1] https://www.zimlive.com/over-4000-prisoners-freed-under-mnangagwa-ordered-amnesty/ accessed on 9 March 2026

[3] In aggravation, the prosecutor tendered the Victim Impact Statement authored by the complainant. In it, the complainant stated that he had sustained head injuries and fractures on the legs and hands. Despite the prosecutor appreciating that the offender was a youthful first offender who had pleaded guilty to the charge and appeared completely remorseful, he gave a lengthy explanation about how the offender had assaulted the complainant. He empahsised that the offender had not only used weapons in the attack but that the force used was severe.

[4] Thereafter, the trial magistrate conducted a community service suitability inquiry. A nearby institution where the offender could perform community service was identified. The offender undertook to perform the community service. The trial magistrate correctly considered both the mitigating and aggravating factors highlighted above. In his sentencing judgment, which spanned over 10 pages and in which he cited **over 25** authorities, the majority of which were dedicated to demonstrating the suitability of imprisonment in this case, the court *aquo* concluded that the aggravating factors far outweighed the mitigation. It stated that the offender could not possibly be spared a custodial term. It rejected the option of a fine and/or community service reasoning that a custodial term will deter the offender from committing future offences and allow him to reform, repent and rehabilitate. In its own words, the court stated that: -

> "This is a very serious offence. The devastating effects to the society are so many. The damage is too much. Some damage is irreversible. Several families are negatively affected in this regard. Courts are not expected to pay a blind eye in this regard. Courts must be seen to be joining hands with all law enforcement agents to combat this ill. The only way to send the correct message is to give effective sentences. The court has not lost sight of the fact that sentencing is done by the courts on behalf of the society that has been wronged."

[5] In the end, the offender was sentenced as follows: -

> "24 months imprisonment of which 6 months imprisonment is suspended for 5 years on condition during the period, the offender does not commit any offence involving use of force or violence on the person of another for which upon conviction he is sentenced to imprisonment without the option of a fine."

[6] When the record of proceedings was placed before me for review, I noted that the conviction was unquestionable. l therefore certify it, as being in accordance with real and substantial justice. The same cannot however be said about the sentence. I detected that the trial magistrate overemphasized the seriousness of the assault until it read like an attempted murder or worse. The sheer number of authorities that were cited in support of imprisonment betray the magistrate's determination to impose nothing else but imprisonment. The language employed

to describe the offence and the circumstances under which it occurred resulted in an exaggeration of the gravity of the offence. As a result, the magistrate lost sight of other important considerations such as the offender's personal circumstances and his regret for committing the crime. Those must have been indicators to the trial court that the offender was someone who was unlikely to reoffend.

[7] I admit that in cases of assault, there aren't any fixed forms of punishment. As to which punishment is appropriate in a particular case, is dependent on the circumstances of that case. All the relevant factors must be weighed and a balance struck between the aggravation and the mitigation.

[8] Apart from the above issues, it is also settled law in this jurisdiction that where a court settles for an effective sentence of imprisonment which is 24 months or below, it is required as a matter of principle, to conduct an inquiry into the suitability or otherwise of community service as an option. See the cases of *S* v *Antonio & Ors* 1998 (2) ZRL 64 (H); *S* v *Mbizvo & Ors* HB 258-16; *S* v *Mpofu* HB 45-17. It is as much a misdirection not to consider community service in those circumstances as it is to perfunctorily state that it has been considered but deemed inappropriate. For a court not to impose community service, clear and cogent reasons must be given. The often-sweeping statement that community service will trivialize the offence may not be good enough because a crime that deserves punishment of 24 months or less is more often than not one which is on the lower end of the scale of seriousness.

[9] In addition, the law is that, where a statute provides for a sentence of a fine, with the alternative of imprisonment, a court must first give serious consideration to the imposition of the fine and reserve imprisonment for the most serious infractions or for repeat offenders. See *S* v *Chawanda* 1996 (2) ZLR 8 (H); and *S* v *Zuva* 2014(1) ZLR 15 (H) for that proposition.

[10] I have already indicated that the trial magistrate erred by sentencing the offender to effective imprisonment without giving serious thought to forms of non-custodial punishments. His description of the crime was unjustified. He spoke of severe force being used when the medical report indicated that moderate force had been applied. His tone was emotional. He described the assault as an *"unprovoked, needless, vicious and mindless attack."* Further, he characterized the whip and the stone used to assault the complainant as *"lethal."* He said it was a *"gruesome act"* which called for a sentence that reflected the *"court's detest and*

*abhorrence of this kind of behavior"*. Yet, the principle is that a court must exercise its sentencing discretion without emotion. The kind of extravagant and emotional language employed by the trial court is what was cautioned against in *S* v *Mahati* 1988 (1) ZLR 190 (H). It has no relationship to the facts on the ground. The failure to properly consider the imposition of a non-custodial punishment particularly community service which the offender had been found suitable for is a gross misdirection on the part of the trial magistrate which warrants interference with the sentence he imposed

[11] In the result, I cannot allow the sentence to stand. I direct as follows: -

i. The sentence imposed by the court *a quo* be and is hereby set aside
ii. The matter is remitted to the trial magistrate for him/her to reconsider the imposition of a non – custodial sentence taking into consideration the guidelines stated in this judgment
iii. The time which the offender has already spend in prison shall be factored into the new sentence that will be imposed.
iv. The registrar of High Court is directed to issue a warrant for the immediate liberation of the offender

**MUTEVEDZI J……**

**CHIVAYO J…….. I agree**